

UNITED STATES DISTRICT COURT MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS MATTHEW,
Plaintiff,

v.

STATE OF FLORIDA,
Defendant.

Case No.:8:24-cv-02907-KKM-NHA

AMENDED COMPLAINT FOR VIOLATION
OF CIVIL RIGHTS
(42 U.S.C. § 1983)

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I. INTRODUCTION

Plaintiff, Matthew Davis, brings this action against the State of Florida for violations of his constitutional rights under the First, Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution. Plaintiff alleges that state and local authorities engaged in a pattern of unlawful conduct, including false arrests, malicious prosecution, retaliation, coercion, violation of parental rights, human trafficking and other misconduct under color of law. Plaintiff seeks declaratory and injunctive relief, compensatory and punitive damages, and any other relief deemed appropriate by this Court.

II. JURISDICTION AND VENUE

1. This Court has jurisdiction under 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3)-(4) (civil rights violations).
2. Venue is proper in the Middle District of Florida under 28 U.S.C. § 1391(b), as the events giving rise to this action occurred within this District.

III. PARTIES

3. Plaintiff: Matthew Aaron Davis is a resident of Zephyrhills, Florida, and a former first responder in Pasco County.

4. Defendant: State of Florida, acting through its agencies and officials of its political subdivision Pasco County, Florida. Including but not limited to, the Pasco County Sheriff's Office, the Department of Children and Families (DCF), the State Attorney's Office, Pasco County Public Defenders Office and Pasco County Clerk of Court. All operating under the State of Florida.

IV. FACTUAL ALLEGATIONS

5. In December 2020, Plaintiff's children were removed by Pasco County Sheriff (PCS) and The Department of Children and family (DCF) from his sole residential custody based on a domestic battery arrest.
6. The Plaintiff was refused his residential custody rights to his children even after he bonded out of jail the following day by PCS.
7. Domestic Battery charges were dismissed on February 11, 2021, by the Sixth Judicial Circuit Court in and of Pasco County Florida and State Attorney Office after "no information" was filed by State Attorney.
8. In March 2021, Plaintiff was forced to attend a child dependency hearing because law enforcement enforcing the violation of the Plaintiff right to custody of his children.
9. Plaintiff was denied his parental rights to custody and rights to due process as there was no grounds for the ongoing removal of his children.
10. The ransome request, by the court, for parenting class certificates where submitted by the Plaintiff. Certified by a higher level of education (threw DCF instead of Pasco County), yet still denied him his children. Forcing the Plaintiff to take classes threw Pasco County Florida.
11. Also in March 2021 the Plaintiff and the domestic partner, mother of their children in common, were arrested by PSO on charges of burglary, dealing in stolen property and fraud.

12. Whereas only the Plaintiff was placed under a States Attorney Investigation but not the co-defendant.
13. While attempting to invoke Plaintiff's right to fair and speedy trial many threats were made to coerce a plea deal then carried out causing irreparable physical damage to one of the Plaintiffs three children.
14. During monthly pre-trial conferences the Plaintiff was subjected to unreasonable delays due to the overturn of court appointed counsel by Pasco County Clerk of Court totaling at nine documented lawyers and one lawyer who had withdrawn from the criminal case twice, then months later reassigned.
15. All but one court appointed lawyer citing ethical reasons for withdrawal and where granted withdrawal due to the United States Marine Corps. Active duty involvement with the States Attorney Investigation.
16. On July 29, 2022 a attempt was made on the Plaintiffs life that involved him being shot in the front of his body, once in the shoulder and once in the abdomen while at his legal residence, unarmed, by a six time felon Stanley Dukett Jr.
17. The Plaintiff was arrested and charged with two counts of Aggravated Assault post emergency air lift to Hudson Hospital to be treated for gunshot wounds.
18. After threat of indefinite incarceration by court appointed council and complete denial of any trial whatsoever Plaintiff signed a guilty plea on April 12 2023 of five felony charges.
19. Destroying his career as a first responder for Pasco County Florida Public Works.
20. Following the coerced plea agreement. Plaintiff requests for appeal were denied in writing from court appointed council and Honorable Judge of post conviction relief Rule 3.850.
21. Post denial of post conviction relief Rule 3.850 the Plaintiff filed his own Pro Se appeal with the Second District Court of Appeals and was asked to file a motion of why the court should accept a untimely appeal.

22. Before the Plaintiff could file a response the Public Defenders Office elected officials Sara Mollo's assistant filed a motion to refuse the acceptance of the untimely appeal with total disregard for the extensive Constitutional Rights violations made in writing during the original proceedings or the fact his appeal was Pro Se.
23. Plaintiffs appeal was dismissed by The Second District Court of Appeals and appealed Pro Se to the Florida Supreme Court.
24. Florida Supreme Court dismissed the appeal and stricken it from the records stating that no disposition was made on original proceedings and no court except the Sixth Judicial Circuit Court in and of Pasco County Florida has jurisdiction.
25. Plaintiff filed another post conviction relief Rule 3.850 with the Sixth Judicial Circuit Court in and of Pasco County Florida that is ignored by the courts. Constituting persecution.
26. Plaintiff continues to be gangstalked, human trafficked and tortured by constant attempts on his life and widespread hate in the community of Zephyrhills, Florida where he served as a first responder, has lived in for 19 years and started a family that hasn't been together in over five years due to a investigation by law enforcement and the United States Military involvement.

V. CAUSES OF ACTION

Count I: First Amendment Violation

27. Defendants retaliated against Plaintiff for exercising his rights to seek legal recourse and defend his parental rights.

Count II: Fourth Amendment Violation

28. Defendants conducted unlawful arrests and searches, fabricating evidence against Plaintiff.

Count III: Fifth and Fourteenth Amendments Violation

29. Plaintiff was deprived of his parental rights and liberty without due process.

Count IV: Sixth Amendment Violation

30. Plaintiff was denied effective legal representation and a fair trial.

Count V: Eighth Amendment Violation

31. Defendants subjected Plaintiff to harassment and intimidation, constituting cruel and unusual punishment.

Count VI: Posse Comitatus Act Violation

32. Defendants used United States active duty involvement within a States Attorney Investigation of a United States civilian (Plaintiff).

"Everything stated, under penalty of perjury, is to my knowledge accurate and true."

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that this Court grant:

- Declaratory Relief: A declaration that Defendants violated Plaintiff's constitutional rights.
- Injunctive Relief: An order restoring Plaintiff's parental rights.
- Compensatory and Punitive Damages: An award of damages for loss of parental rights, false imprisonment, and associated trauma in the amount of \$50 million
- Attorney's Fees and Costs: Pursuant to 42 U.S.C. § 1988.

Respectfully submitted,



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Dated: February 20, 2025